Notification Waiver Determination

ANZ Australian Staff Superannuation Scheme – further investment in Vinva Australian Equities Fund unit trust

Acquisition	ANZ Staff Superannuation (Australia) Pty Limited (the **Super Trustee**) in its capacity as trustee of the ANZ Australian Staff Superannuation Scheme (the **Scheme**) applied for a notification waiver in respect of its proposed further investment of $150 million for units in the Vinva Australian Equities Fund (the **Vinva Fund**), as described in the documents provided as part of the application (the **Acquisition**). The Acquisition would increase the Super Trustee's existing holding in the Vinva Fund to more than 20% of the issued units.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	23 October 2026

Parties to the Acquisition	The Super Trustee's sole business is the provision of superannuation benefits and superannuation products to current and former ANZ Bank group employees and their spouses/partners in the Super Trustee's capacity as trustee of the Scheme, an APRA-regulated complying superannuation fund. The Super Trustee is a non-controlled subsidiary of Australia and New Zealand Banking Group Limited (**ANZ**). ANZ and other ANZ subsidiaries (who are connected entities of the Super Trustee) provide banking and other financial services in Australia and internationally to wholesale and retail clients. ANZ also offers investment advisory services to individual investors under its 'Private Bank' brand, which includes giving advice about, and arranging investments in, managed investment products. Vinva Investment Management Limited (**Vinva**), the operator and responsible entity of the Vinva Fund, operates in the market of providing managed investment products to wholesale and, indirectly, retail investors throughout Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the Acquisition does not result in any substantive change in the control of the Vinva Fund, or the control of the entities which the Vinva Fund has interests in b. while the broader ANZ corporate group (through its 'Private Bank' brand) and Vinva overlap in the supply of managed investment products, the Super Trustee must perform its duties and exercise its powers in the best financial interests of the Scheme's beneficiaries. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act